



SPONSOR: Rep. Wilson-Anton & Sen. Townsend

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 202

AN ACT TO AMEND TITLE 21 REGARDING CIVIL PENALTIES FOR SPEEDING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4170A, Title 21 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4170A. Electronic speed monitoring system [Expires June 30, 2028, pursuant to 84 Del. Laws, c. 74, § 2].

4 (g) *Civil penalties.* —

5 (1) The owner or operator of a vehicle who has failed to comply with the posted speed limit, as evidenced by
6 information obtained from an electronic speed monitoring system, ~~shall be~~ is subject to a civil penalty consistent with
7 those established under § 4169(c) of this title. Assessments defined under § 4105 of this title, §§ ~~4401~~ 4101(d), (g), (h),
8 and 9016 of Title 11 and § 8505 of Title 10, ~~shall~~ may only be assessed for violations occurring in a “work zone” as
9 defined in subsection (b) of this section.

SYNOPSIS

This Act allows an additional assessment to be assessed for a speeding violation, proven through information captured on an electronic speed monitoring system, that exists in § 4101(j) of Title 11. This assessment was previously not permitted to be assessed unless the speeding occurred in a work zone. The assessment is \$10 and is paid to the Volunteer Ambulance Company Fund.

It also makes technical corrections to conform to the requirements of the Delaware Legislative Drafting Manual.